

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 22, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne (arriving at 6:04 p.m.), Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Kristy Anderson, Deputy City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Brown, and pursuant to support received by Ms. Broyles and Ms. Williams, Agenda Item #13(c) was removed from the Consent Agenda. Ms. Broyles moved to approve remaining consent agenda items, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on September 8, 2014. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in vouchers payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Shanor moved to approve payment of vouchers as presented, seconded by Mr. Luna. Upon inquiry, Lois Huff, City Treasurer; Mayor Kaysen; Rick Parish, Parks and Recreation Director, and Jim Elias, Public Works Director, provided information relative to the following vouchers: JM Rodent Control; Brant Audiology, LLC; Harris Enterprise Resource Planning; Professional Financ; Qian Yaling, and Ron Little Valley Wholesale Nursery. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers. Following approval of vouchers, Mayor Kaysen noted for those present in the audience, Agenda Item #12(a), Preliminary Plat for Thomas Heights, would have no further discussion on it at the meeting since it was approved on the Consent Agenda.

ORDINANCE - Vacating a portion of Alexander Avenue and 13th Street, adjacent to Blocks 444, 445, 452 and 453, Original City, Cheyenne, Wyoming (located south of E. Lincolnway, west of Dunn Avenue). Reporting for Public Services Committee, Mr. Shanor moved to approve on second reading, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development

Code, changing the zoning classification from MR-1 Medium Density Residential-Established to MUB Mixed-Use Business Emphasis for Lots 7 and 8, Block 509, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of W. 10th Street and Bent Avenue). Mr. Shanor moved to approve on second reading, seconded by Ms. Williams. Upon inquiry, Brandon Cammarata, Planning and Development Director, reviewed the proposed zone change area and explained there are mixed uses in the area, including residential. He further advised that notification to residents in the area was provided. Upon inquiry, Gary Grigsby, Western R&D, agent for applicant, clarified there isn't a current plan to erect a metal building. He advised with the exception of one residential property, the entire block is zoned MUB, therefore, the applicant felt it was best for this property to also be zoned MUB. Motion carried. Voting "yes" -- all members of the governing body.

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2015 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5619)

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Del-Van Storage Park, being a replat of all of Goodwater Addition, Goodwater Drive, and Water Blue Lane and a portion of the Northeast Quarter of the Northwest Quarter of Section 26, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located south of and adjacent to Dell Range Boulevard, east of and adjacent to Van Buren Avenue). Mr. Shanor moved to adopt with staff recommendation #1, seconded by Ms. Williams. Jim Flesher, Planning and Development Office, reviewed the recommendation and advised it was in regard to the drainage stormwater easement and revising the stormwater detention study. Motion carried. Voting "yes" -- all members of the governing body. (#5620)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne supports the application of the Town of Burns for \$42,000 in State Loan and Investment Board 2015 - 2016 Countywide Consensus Block Grant funds to purchase a truck for the Burns Maintenance Department -- referred to Finance Committee.

[CA] Preliminary Plat for Thomas Heights, a replat of Lots 1, 2 and 3, Smithson View; Tracts 26, 27, a portion of Tracts 1 and 7, Dell Range Addition, Second Filing, Cheyenne, Wyoming (located between Ridge Road and College Drive, south of Summit Drive). Motion (per Consent Agenda) carried.

[CA] Agreement between the City of Cheyenne, Transit Division, and Wyoming Department of Transportation for Wyoming Rural Public Transit Program Fiscal Year 2015 (Wyoming Department of Transportation grant). Motion (per Consent Agenda) carried. (#6240)

[CA] Right-of-Way Encroachment Agreement between the City of Cheyenne and WILLCO IX Development, LLLP, to construct a loading and unloading lane and island on Pioneer Avenue in front of the future Hilton Garden Inn. Motion (per Consent Agenda) carried. (#6241)

Project Development and Administration Agreement between the City of Cheyenne and the Children's Museum of Cheyenne, for development of a Children's Museum. Tom Lindsey, spoke

in opposition to the agreement and expressed concerns regarding potential costs to taxpayers. Amy Surdam, President, Board of Directors, Children's Museum, spoke in favor of the agreement and explained what the museum project will entail, its mission and the positive impact it will have on the City. Jim Weaver, #1 Properties, agent for Outback Investments, owner of the Hynds Building, provided a handout (on file with City Clerk's Office) and stated that they believe the current agreement poses a risk to the Hynds Building owners utilizing the corridor, and requested a possible postponement to address a use agreement for the corridor. Discussion continued on negotiations for use of the corridor. Additional individuals who commented were: Meredith Asay, member of Board of Directors of Children's Museum; Buck Holmes, and Hans Seitz, Pres., Downtown Development Authority. Reporting for Finance Committee, Mr. Brown moved to approve, seconded by Mr. Valdez. Upon inquiry, Ms. Surdam explained that they have been in contact with local architects who have developed conceptual drawings, and have reviewed the planned space of the museum, including HVAC and elevators located on east side of the building that abuts the Hynds Building. Mr. Brown moved to postpone for 2 weeks (to October 13, 2014). Due to lack of a second, the motion to postpone died. Main motion carried. Voting "yes" -- all members of the governing body. (#6242)

[CA] Lease Agreement between the City of Cheyenne, Parks and Recreation Department, and Brian Chalstrom, d/b/a Putt Hutt, for premises used as a miniature golf course in Lions Park -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and I.T. Refresh, Ft. Collins, Colorado, for electronic recycling services (Solid Waste Fund) -- referred to Finance Committee.

[CA] Contract Modification No. 3 to Contract No. 6115 between the City of Cheyenne and FCI Constructors of Wyoming, LLC, establishing the Guaranteed Maximum Price (GMP) for the Cheyenne Public Safety Center Project (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried. (#6115)

[CA] Contract Modification No. 1 to Contract No. 6151 between the City of Cheyenne, Engineering Department, and Short Elliott Hendrickson, Inc., for the 19th Street Rehabilitation Project (2011 - 2014 1% Sales Tax, BOPU Funds) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 6190 between the City of Cheyenne and Deep Green Energy, LLC, for conditions requiring additional work in the George Cox and Jack R. Spiker parking facilities (Impact Assistance funds) -- referred to Finance Committee.

[CA] Authorization of single source quote from Dant Clayton Corporation, Parker, Colorado, for purchase of bleachers at Powers Baseball Field, Parks and Recreation Department (Special Distribution funds). Motion (per Consent Agenda) carried (accepted in the amount of \$73,641.00).

[CA] Authorization of single source quote from AquaClimb/Pyramide USA, Inc., Frederick, Maryland, for a purchase agreement to acquire a Glacier Climb Wall, Parks and Recreation Department, Cheyenne Aquatic Center (Recreation Program funds). Motion (per Consent Agenda) carried (accepted in an amount not to exceed \$37,865.00).

[CA] Consideration of Bid #M-5-15 for a contract for the HR Ranch Road Greenway Gap project between the City of Cheyenne, Parks and Recreation Department, and Simon Contractors, Cheyenne, Wyoming (Development Impact Funds - Parks Infrastructure) -- referred to Finance Committee.

Request to approve change of location of additional dispensing room for City of Cheyenne resort liquor licensee, The Plains Hotel Co., LLC d/b/a The Plains Hotel, located at 1600 Central Avenue, Cheyenne, Wyoming – referred to Finance Committee.

Announcement was made that the Laramie County Republican Party will be sponsoring a Calcutta to be held Friday, October 10, 2014 beginning at 6:30 p.m. at the Old West Museum, 4610 Carey Avenue, Cheyenne, Wyoming, in conjunction with the Red State Rendezvous (Proceeds to benefit Laramie County Republican Party).

Under Other Business:

Major Dorr spoke about development in different areas of Cheyenne and expressed concerns regarding the need for a grocery store in West Cheyenne. Upon inquiry, Matt Ashby, Planning and Development Director, explained that with the West Edge development project, prospects for any type of a grocery store would be on a smaller scale.

Ms. Williams moved to reconsider the vote taken at the Sept. 8, 2014 City Council meeting for an “Application requesting the establishment of a Residential Critical Traffic and Parking Area in the vicinity of the Cheyenne Regional Medical Center,” seconded by Mr. Allen. It was advised the purpose of the motion to reconsider was to amend the application to extend the area’s boundaries as recommended by the City Traffic Engineer. Motion carried. Voting “yes” -- all members of the governing body. Mayor Kaysen advised the main motion to approve the Residential Critical Traffic and Parking Area was now back before the governing body. Deputy City Clerk Kristy Anderson read the entitlement into the record as follows: “Application requesting the establishment of a Residential Critical Traffic and Parking Area in the vicinity of the Cheyenne Regional Medical Center.” Ms. Williams moved to postpone to Oct. 13, 2014, seconded by Mr. Shanor. Motion to postpone carried. Voting “yes” -- all members of the governing body. Mayor Kaysen announced due to postponement, the item will be reviewed at the next Public Services Committee meeting which will be held Tuesday, Oct. 7, 2014 at noon, Room 122, of the Municipal Building.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:42 p.m.

Submitted by,

Kristy B. Anderson, CMC
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

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